SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 577 of 2020 (YEAR: 2021)

CORAM: D.Y. CHANDRACHUD, M.R. SHAH, SANJIV KHANNA

Neeharika Infrastructure Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
State of Maharashtra
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 482 CrPC

JUDICIAL HEADNOTE & SUMMARY

Held that High Courts should not pass blanket orders restraining arrest or investigation during Section 482 petitions except in extraordinary and rarest of rare cases.

RATIO DECIDENDI

The Court held that: Held that High Courts should not pass blanket orders restraining arrest or investigation during Section 482 petitions except in extraordinary and rarest of rare cases. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra (Criminal Appeal No. 577 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 482 CrPC. Held that High Courts should not pass blanket orders restraining arrest or investigation during Section 482 petitions except in extraordinary and rarest of rare cases.

OPERATIVE ORDER

ORDER: Decided